THE STATE
versus
GODKNOWS POTERA

HIGH COURT OF ZIMBABWE
FOROMA J
HARARE; 28 July, 21 November 2025 & 2 March 2026

Murder Trial

M F Ndingadii, for the state
S Bingura, for the accused

FOROMA J: The accused was charged with the murder of Chinamasa in contravention of s 47(1) the Criminal Law Codification and Reform Act [*Chapter 9:23*] it being alleged that the accused assaulted the deceased with a stone on the head twice causing deceased to sustain injuries from which the deceased died on 29 December 2018. The accused pleaded not guilty to the charge claiming that he was not at the scene of crime at the time the deceased was allegedly assaulted on 25 December 2025 as he had left the Donain Shopping Center where the assault allegedly took place. Accused in his defense outline claimed that he was at Bostic Extension 6 at the time of the alleged offence.

In order to prove its allegations against the accused, the State relied *inter alia* on a post mortem report by Dr Matshalaga, a medical partitioner at Parirenyatwa Hospital who examined the remains of the deceased and concluded that the deceased's death was due to subdural haematoma and blunt force head trauma consistent with assault history. The post mortem report was initially objected to by the accused who later and midstream admitted to the production of the said report into evidence by consent. The state also produced in evidence Accused's confirmed warned and cautioned statement as exhibit 1. The said confirmed statement was very brief and stated as follows.

> " I do not admit the charge levelled against me I heard by Attack Machemera that the guy who I was drinking beer with by the name Muda Uranda on the Christmas day is the one who assaulted the now deceased and he stays in Empress area".

It is significant at this stage that the accused never made any reference to the claim in the defence outline that he was not at the scene of crime at the time the deceased was assaulted.

The state also led oral evidence from three witnesses which evidence is summarised below.

The first witness was Blessing Mujatiwa who testified that he knew the accused whom he had known since 2015 and that he frequently met him at Donain Shopping Centre. He also knew the deceased Atmos Chinamasa who was his cousin born to one Charles Mujatiwa his paternal uncle. He was at Donain Shopping Center on Christmas day on 25 December 2018 where he was drinking beer with the deceased and others. While at the Donain Shopping Center he observed accused and a group of males in his company who were rowdy and assaulting people at the shopping centre. He had arrived at the Donain Shopping Centre at about 2pm and recognized Accused in the rowdy group of males at about sunset. He observed that the accused was holding a wooden switch. While they were drinking beer with others, the deceased left to use the toilet. They had been drinking with others including a member of the police called Bhamhala and a teacher from Donain Secondary School. On his return from the toilet, deceased indicated that he had been assaulted by the rowdy group and had sustained head injuries on the left front of his head and at the back of his head and that his mobile phone had also been taken from him. While at the shops the accused and another came close to them and the deceased pointed to the accused and the other person in accused's company as the persons who had attacked him. At that time the accused was quite close to him and the deceased (about one and half metres away). The witness indicated that at that time electricity had gone off and the source of light was a generator from the bar where they were drinking which had switched on its generator. While at the shops the witness claimed deceased disappeared and he thought deceased had gone home. He next saw the deceased the following morning. The deceased died on 29 December 2020 as he could not recover from the injuries he had sustained from the alleged assault by the accused and his rowdy group. The witness while admitting to having consumed beer denied that he had been drunk claiming that he could fully appreciate all events around him. The witness was adamant that he did not witness the deceased being assaulted but that accused had been pointed to him by deceased as one of the deceased's assailants. During cross-examination he denied telling the police that he had witnessed the assault and insisted that the deceased is the one who showed him the people who had assaulted him and that accused was one of them. In answer to the court, the witness testified that the Marauding group at Donain on this day may be the Machete wielding gang who were after their adversaries and that people are usually assaulted

at the shopping centre by gangs of gold panners. He also testified that at the time of the incident illegal gold panning was rampant in the area. He insisted that accused was still at Donain Shopping center at the time deceased was assaulted.

The next state witness was Temba Mapute. He gave evidence under oath and testified that he resides in the Donain Resettlement Scheme in Kadoma. He also testified that he knows the accused as a resident of a neighboring village ie Extension 6 Bostick. He saw the deceased around 5.00pm on Christmas day at Donain Shopping Centre. On that day he saw the accused at Domain Shopping Centre. He thought it was about 5.00pm when he saw him. He was positive that it was before sunset when he saw the deceased on the ground surrounded by people of some whom were wondering as to what had happened to him. Others were assisting deceased to get up.

The witness also observed that the accused was wearing a white jean trouser and a white T-shirt. He witnessed a marauding gang chasing people at the shopping centre. He also testified that accused and his colleagues, about 14 of them, were randomly assaulting any one they came across. He also had at some stage tried to escape from them. He was able to identify accused in the marauding group as a child from the neighborhood who had grown up in the area and he knew accused's parents. He too was a victim of the assaults by the group who were urged on by accused to assault him. He sustained injuries on top of his head, eye and on the cheek and had lost a tooth as a result of the assault. He recalled that when he was assaulted, he fell down and lost consciousness. He was rescued and taken to the mill and he later went to the local clinic to seek treatment. The clinic staff declined to attend to him as they did not know the circumstances of the injuries he presented with and insisted that he reports at the police first. The witness reported the assault to police and obtained a letter from a police detail called Bamhala which he took to Kadoma Hospital for treatment.

The witness testified that he did not know deceased but when he saw him about 5.00 pm at the business centre behind Muroyiwa's shop, he had heard that he had been stonned. At the time he saw him, deceased was being assisted to get up. He also testified that he saw the accused's group as they were approaching Hure Bar and this was after observing the now deceased being assisted to get up as aforesaid. According to the witness, he reported the assault on him by accused and others at police who arrested and charged accused with assault but by the time he was attended this court as a witness in this trial, the matter (accused's trial) had not yet taken place at Kadoma. During cross examination the witness denied that there

was any bad blood between him and the accused. He admitted that he had not witnessed accused assault the deceased nor did he eye witness the assault of the deceased. He however claimed that he personally was assaulted at about 7.00pm. The witness was adamant that the accused insisted and urged that his companions to assault him although he had not provoked them. This was despite him remonstrating with them that they knew him well and should leave him alone. When the witness saw the accused, he thought he exhibited signs of drunkenness. The witness was adamant that the accused was at Donain Shopping Centre when deceased was assaulted and this was before the time, he himself was assaulted by accused and his gang.

The last witness was Amos Makanji the Investigating Officer in the matter. His evidence was largely formal as he did not witness deceased's assault. It is significant to note that he visited the scene of crime at Donain Shopping Centre. He testified in regard to the scene of crime that it was at the back of the shops where there were a lot of bricks and stones and as a result it was not possible to determine which stones or bricks may have been used to commit the offence. He testified that he knew Bhamhala as an employee of the clinic at Donain Shopping Centre and that he was a member of the neighborhood Watch Committee. During cross-examination, the witness confirmed that Accused had been charged with assaulting Temba Mapute but that Temba Mapute's complaint was investigated by a different police detail and not by him. He considered that Blessing Mujatiwa would be lying if he testified that he did not witness the assault of deceased as it was him who actually took police to the scene where he made indications. Unfortunately, no indications were produced at the trial neither was the witness Blessing Mujatiwa cross-examined about them.

The State closed its case after the 3rd witness where upon the defence applied for a discharge of the accused at the close of the state case which application was refused.

The Defence opened its case with the accused giving evidence on oath. He adopted his defence outline wherein he raised an alibi. Accused claimed that he did not witness the disturbances at the Donain Business Centre but heard about it. The witness maintained that on 25 December 2018 he was dressed in a red cap, red T-shirt and white trousers and red sneakers. He disputed harassing anyone at the Donain Shops before he left. When asked during cross-examination why he did not challenge Temba Mapute's evidence that he was dressed in all white he responded that he had no chance to do so as he was represented. He however admitted that there was no bad blood between him and Temba Mapute.

He denied indicating in his warned and cautioned statement that it was Muda Uranda who assaulted the deceased as he was relating hearsay given to him by Attack Machemera.

Analysis of Evidence

The following is common cause

(1) Accused, deceased and Blessing Mujatiwa were at Donain Business Centre on 25 December 2018 where they were drinking beer with their collegues.

(2) There was a rowdy group of males who caused a disturbance of the peace to revellers and other people at Donain Business Centre.

(3) Deceased on 25 December 2018 was assaulted at the shops by the marauding group resulting in him sustaining injuries from which he died on 29 December 2018.

Issues

1. Whether the accused and his colleagues assaulted the deceased.
2. Whether the accused assaulted Temba Mapute at Domain Shopping Centre on 25 December 2018.
3. Whether state rebutted Accused's Alibi.

Veracity of State Evidence.

It is clear that none of the state witness were eye-witnesses to the deceased's assault. For this reason the identity of the assailant(s) or the identity of the weapon used could not be pin pointed.

It is significant as will be demonstrated below that among the state witnesses was one to whom the deceased pointed the person who had assaulted him very shortly after the assault.

The evidence of Mujatiwa is therefore important in so far as he testified that the deceased pointed at the accused and another in accused's company as the persons who had assaulted him. This evidence is significant in that it not only places accused at the scene of crime but casts doubt on the accused's alibi defence. Mujatiwa's evidence was corroborated by that of Temba Mapute who testified to having observed the accused at the Donain Business Centre shortly after the deceased had been assaulted. Temba Mapute did not testify to having witnessed the accused assaulting the deceased but placed him at Donain Business Centre after the deceased had been assaulted thus disproving the accused's alibi defence.

It is significant that the witness Temba Mapute testified that he was also victim of assault by the accused and his gang at Donain Business Centre. He reported the assault to the police implicating accused as a result of which accused was arrested and charged with assault as confirmed by Sgt Elias Bangure, a witness called by the court.

It is significant to note that the accused did not raise his alibi defence timeously for it to be investigated for verification by the police on behalf of the state. Accused's alibi defence was clearly discredited by the prosecution and the court finds that the accused was not a credible witness in this regard.

The Defence's contention is that Blessing Mujatiwa's evidence that the deceased pointed accused to him as his assailant is hearsay and that it does not qualify as one of the exceptions called a dying declaration.

The court does not agree with the defence and fully agrees with the State in its reliance on the case of *S* v *Mutsure* SC 62/21 where the Supreme Court cited with approval dicta in *R* v *Andrews* [1987] 1 ALLER 513 that

> "Hearsay evidence of a statement made to a witness by the victim of an attack describing how he had received his injuries was admissible in evidence as part of res gestae, at the trial of the attacker if the statement was made in conditions which were sufficiently spontaneous and sufficiently contemporaneous with the event to preclude the possibility of concoction or distortion. In order for the victim's statement to be sufficiently spontaneous to be admissible it had to be so closely associated with the event which excited the statement that the victim's mind was still dominated by the event. If there was a special feature eg malice giving rise to the possibility of concoction or distortion the trial judge had to be satisfied that the circumstances were such that there was no possibility of concoction or distortion. However, the possibility of error in the facts navigated by the victim went to the weight to be attached to the statement by the jury and not to admissibility. Since the victim's statement to the police was made by a seriously injured man in circumstances which were spontaneous and contemporaneous with the attack and there was no possibility of any concoction or fabrication of identification, the statement had been rightly admitted in evidence."

It is the court's view that Mujatiwa's evidence matched the specifications referred to. Indeed, the statement on who the attacker was as given by the deceased to Mujatiwa soon after the attack was excited by the attacker appearing as he went past deceased and the witness. It is clear there was no possibility of concoction or fabrication as deceased pointed at accused and the other in accused's company as the persons who had caused the injuries, he had just sustained which injuries (to the head) caused deceased's death. It is common cause that the post mortem report gave the cause of death as subdural haematoma and blunt force head trauma. According to the evidence these were caused at the Donain Business center on

20 December 2018 and there was no suggestion deceased sustained them on a subsequent occasion elsewhere.

This court fully subscribes to the ratio reiterated in the matter of *S* v *Wirosi* HMT 57/21where the court reiterated that it is now settled law that the aspects of intention can safely be inferred from the nature of the weapon used, the part of the body the fatal wounds were inflicted, the number of blows, intensity and viciousness of the attack. In *casu* one hardly need to reiterate the findings per the post mortem report and that the head is a very sensitive part of the body. Quite apart from the ratio of *S* v *Mutsure* (supra) the evidence of Blessing Mujatiwa as hearsay falls under the exception to the in admissibility of hearsay evidence contemplated in S 253 (2) of the Criminal Procedure and Evidence Act.

In the circumstances the court is satisfied that Blessing Mujatiwa was a credible witness. We accept that as a relative of the deceased his evidence could easily have been biased against the accused. However, the admission by the witness that he did not witness the assault itself is testimony that he was not influenced in his testimony by his relationship to the deceased. The court on the other hand did not find accused to be a credible witness. We find his alibi defence to be false beyond reasonable doubt and one that was raised as an afterthought. Considering that it was not raised earlier with the police but for the first time at trial.

We accordingly find the accused guilty of murder with constructive intent.

SENTENCING JUDGMENT

The accused was charged and convicted of contravention of section 47 of the Criminal Law and Codification and Reform Act [*Chapter 9:23*] that is to say murder it being alleged that he unlawfully caused the death of one Atimos Chinamasa a 22-year-old adult by assaulting him with a stone on the head. The offender pleaded not guilty to the offence claiming that at the time the deceased was assaulted he was not at the place where the offence took place but was at some place else.

The court convicted the offender after it had been proved at the trial that accused had been at the Donain Business Centre at the material time that his alibi defence was proved to be false and that such defence had not been disclosed to the police at the time of recording the

warned and cautioned statement which statement had been confirmed in the Magistrate Court.

THE LAW

Section 47 subsection (1) of the Criminal Law Codification and Reform Act provides for a sentence of life imprisonment or imprisonment for a period of not less than 20 years where the murder was committed in aggravating circumstances. The Sentencing Guide Lines Regulations of 2023 provide a presumptive penalty of 20 years imprisonment where the murder was committed in aggravating circumstances or 15 years imprisonment where there are some mitigating circumstances.

MITIGATION

(1) that the offender was a youthful offender aged 19 years at the time of the commission of the offence
(2) that the offender was under the influence of alcohol at the time of committing the offence
(3) that the offender spent more than 2 years of pre-trial incarceration
(4) that the offender has no previous convictions. The defence counsel also submitted that a portion of the sentence should be suspended on conditions.
(5) The Criminal Law Codification and Reform Act as well as the Criminal Procedure and Evidence Act [*Chapter 9:07*] prohibit the suspension of any portion of a sentence imposed for murder committed in aggravating circumstances.

AGGRAVATION

The Sentencing Guide lines while helpful in listing examples of aggravating circumstance provide a safety net in that it expressly provides that the list is not exhaustive. In other words the sentencing court can properly find other factors of aggravation outside the listed ones. In *casu* the court finds it aggravatory that the offender was involved in a group of marauding youths harassing people at the business centre who had come to have a nice time at the business centre on Christmas day.

It is also aggravating that although the weapon used to assault the deceased was not identified it is common cause that some blunt instrument was used to assault the deceased on

a sensitive part of the human anatomy (the head). It is also aggravatory that the deceased had not provoked his assailants at all. The court also finds it aggravatory that the offender did not render any assistance to his victim after inflicting an injury on a very sensitive part of the body on the head. It is also aggravatory that the deceased's family was deprived of a bread winner whose life was at its prime.

SENTENCE

In arriving at an appropriate sentence, the court considered that the offender committed this offence in very sad circumstances. He came to the business centre as a regular patron on Christmas day. Although the offence had not been pre-planned it is difficult to understand why the offender was swayed to join the group of Marauding youths that was causing havoc and violence to revellers at the business centre. The court takes note that the offender spends the best part of the day in question imbibing alcohol with friends. No doubt the offender's youthfulness coupled with the effect of alcohol (probably taken to excess) this took its toll on accused as time progressed. The offender's regrettable and overzealous decision to join the violent group of other youths resulted in the loss of a precious life which loss is irreplaceable. The offender as well as the youths generally should be warned against overexcitement attributable to uncontrolled and excessive consumption of alcohol in public places.

The fact that the offender spent more than 2 years of pre-trial incarceration will not avail the offender anything. This is because when granted bail pending trial when trial had commenced and while awaiting a ruling on an application for discharge at the close of the state case, he defaulted his trial. As a result, a warrant of arrest was issued against him. On his arrest he could not be trusted not to abscond. He accordingly had to have the balance of his trial finalised while in custody.

The policy of the law is to protect 1st offender from get ing into contact with hardened criminals. This is achieved by avoiding their effective imprisonment where this can be done without doing violence to the proper administration of justice. Unfortunately, any sentence other than imprisonment would be unconscionable in the eyes of the public and society generally whose interests it is the duty of the court to jealously guard. The offender's situation is not assisted by the fact that the court cannot ameliorate the effect of an effective imprisonment by suspending a portion of the sentence as such a suspension is expressly

prohibited by law and in this regard, reference is made to section 358 of the Criminal Procedure and Evidence Act [*Chapter 9:07*] in its reference refers to schedule 8 offences. It is for this reasons that the court find it sufficiently moved to consider not imposing the presumptive penalty of 20 years despite the aggravation found to exist in this matter. In the circumstances the offender is sentenced to 15 years imprisonment.

FOROMA J: .....

National Prosecuting Authority Harare, Complainant's Legal Practitioners
Pundu And Company Legal Practitioners, Accused's Legal Practitioners